NYARESA MACKENZIE
and
MCDONALD MUGABE MUKWAIRA
and
TERRENCE MAFAMBA
and
EVANS MAFAMBA
and
TAKAWONA MAFAMBA
versus
SIMBARASHE CHIMWAZA

HIGH COURT OF ZIMBABWE
MUZOFA AND BACHI MZAWAZI JJ
CHINHOYI, 7 and 14 July 2025

N. Charewa, for the Appellants
G. Tinarwo, for the Respondent

Civil Appeal

BACHI MZAWAZI J:

In brief

We granted an extempore judgment in this case with fully explained reasons captured not only on tape but before the litigants' legal representatives. On the 9th of July 2025, Mr, Tinarwo who had the privilege to have the record transcribed so as to obtain the full record of proceedings and our reasoning chose to write through the Registrar seeking the same from the court**.** We recognise the existence of such a right but the notion that it is subjected to abuse by an unsuccessful party to spite the court cannot be ruled out**.** These are the reasons.

The appellants appealed against the whole decision of the Magistrates Court Chinhoyi, of the 25th of March 2025, granting the respondent a binding over order against them. Central to their disgruntlement amongst other grounds, in short, is that the trial court issued the peace order in the absence of evidence that indeed there was breach of peace or a likelihood that the breach of peace was threatened. Per contra the respondent argued that the court *a quo* did not misdirect itself and its factual findings should not be lightly interfered with.

Trial Court's Decision

In its reasoning the trial court concluded that most of the allegations against the respondents therein now appellants, were based on past unproved criminal cases and pending

police investigations on counter accusations by each side. Whilst acknowledging that there was merit in the argument by the appellants that there was need for supporting evidence in the form of supporting affidavits from the respondent's wife and employees it nonetheless resolved that there was on a balance of probabilities animosity warranting the granting of a peace order.

Issues for determination

The issue for consideration boils down to whether or not the trial court erred in granting a binding over order against the appellants?

Discussion

The litigants are neighbouring mining rights owners. There has been a history of counter allegations of encroachment on each other's mining area and space, amongst, other related issues. There was photographic evidence indicating cases of arson and other misfeasance's on the respondent, his property, his employees and family members. No evidence, however, pinpointed any one of the appellants, nor link or prove the involvement of any one of them to those incidents. Indeed, the parties sued each other in different forums and filed reports against each other with the Police, but still there was no outcome conclusively pinning the blame on the other.

We are cognisant of the fact that the trial court proceeded in terms of s388 of the Criminal Procedure and Evidence Act [Chapter 9:07] which provides for the law on peace orders and the course of action to be followed by a judiciary officer. It is clear on the record that indeed the court made the requisite enquiry from both the appellants and the respondent. However, from its reasoning there was no evidence to establish that there was a threat to peace or actual breach of peace that was placed before it.

In *Hyandoro v Hokonya and Ors* 1997 (2) ZLR 457 (SC)AT 459 D. it was held that,

"The general principle is that he who makes an affirmative assertion, whether plaintiff or respondent, bears the onus of proving the fact so asserted".

As correctly submitted by the appellants, the onus in civil matters lies on him who avers to prove on a balance of probabilities that the delict was committed. In this case the Magistrate admitted that the argument by the appellants highlighting the need of supporting evidence had merits. By so doing it meant that in the absence of such evidence there was no basis to grant the peace order.

It is clear on record that, the court's decision was influenced by the already mentioned several inconclusive allegations which led it to conclude animosity. The order was granted on the basis of the alleged animosity and not on proved acts or conduct of breach of peace or likelihood of breach of peace. We are of the view that the respondent failed to discharge its burden of proof on a balance of probabilities. It's all about evidence. Although logical as the respondent's argument may sounds that there is no harm in the peace order granted, the fact remained that the court was obligated to grant an order based on proved evidence not on empathy or charity.

We are inclined to agree with the appellants' arguments on appeal that basically the law enjoined the trial court to make an enquiry and then on the evidence conclude the existence of breach of peace or the threat to that effect.

The court is also alive to the doctrine laid out in the case of *Hama v National Railways of Zimbabwe* 1996 (1) ZLR 664 (S), where the court held at 670C-E that: -

"The general rule of the law, as regards irrationality, is that an appellate court will not interfere with a decision of a trial court based purely on a finding of fact unless it is satisfied that, having regard to the evidence placed before the trial court, the finding complained of is so outrageous in its defiance of logic or of accepted moral standards that no sensible person who had applied his mind to the question to be decided could have arrived at such a conclusion.)

The cases of, *Metallon Gold Zimbabwe v Golden Million (Pvt) Ltd* SC 12/15 at p 7, *Reserve Bank of Zimbabwe v Granger and Anor SC 34/01* are also authorities on the principle limiting interference with a lower case's factual finding or decision save in exceptional cases.

In this case, it was irrational for the trial court to grant an order not supported by evidence. It will set a wrong precedent if not encouraging a floodgate of protection or peace order suits based on the mere fact that people may dislike each other, in the absence of evidence buttress actual breach of peace or threats to the breach of peace.

Accordingly,

It is ordered that:

1. The appeal is allowed.
2. The decision of the trial court is set aside and substituted with the application for a peace order is dismissed with costs.
3. Costs follow suit.

Murisi and Partners Appellants' legal practitioners
Zimudzi and Associates, Respondent's legal practitioners